

to the marriage, who at the time of the passing of this Act shall be, and shall until his death continue to be, a lunatic, so found by inquisition.

Saving for
20 & 21 Vict.
c. 85. s. 27.

3.—(1) Nothing in this Act shall remove wives' sisters from the class of persons adultery with whom constitutes a right, on the part of wives, to sue for divorce under the Matrimonial Causes Act, 1857.

(2) Notwithstanding anything contained in this Act or the Matrimonial Causes Act, 1857, it shall not be lawful for a man to marry the sister of his divorced wife, or of his wife by whom he has been divorced, during the lifetime of such wife.

Liability of
clergyman to
ecclesiastical
censure.

4. Nothing in this Act shall relieve a clergyman in holy orders of the Church of England from any ecclesiastical censure, to which he would have been liable if this Act had not been passed, by reason of his having contracted or hereafter contracting a marriage with his deceased wife's sister.

Interpretation.

5. In this Act the word "sister" shall include a sister of the half-blood.

Short title.

6. This Act may be cited as the Deceased Wife's Sister's Marriage Act, 1907.

CHAPTER 48.

An Act to amend the Law relating to the capacity of Women to be elected and act as Members of County or Town Councils in Scotland. . [28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Provision as
to capacity of
women to be
county or town
councillors.

1.—(1) A woman shall not be disqualified by sex or marriage for being elected or being a councillor of the council of any county or burgh in Scotland, but shall not—

(a) if elected as a councillor, by virtue of holding that office be eligible for election, or for acting, as a burgh magistrate, or as a judge in any police court, or as a member of a licensing court or court of appeal; or

(b) if elected as chairman of a county council or provost of a burgh, by virtue of holding or having held that office be a justice of the peace or burgh magistrate, or be eligible for election, or for acting, as a burgh magistrate, or as a judge in any police court: Provided that, where a woman is elected as provost of a burgh, the number of bailies to be elected in the burgh shall, while she holds office as provost, be one more than the number otherwise fixed by law, and

any additional bailie so elected shall hold office for the period prescribed by the law regulating the office of burgh magistrate or bailie, subject to the provision that he shall in no case continue to hold office after the woman has ceased to hold office as provost.

(2) Subsection (1) of section nine of the Local Government (Scotland) Act, 1889, and the word "male" occurring in section twelve of the Town Councils (Scotland) Act, 1900, are hereby repealed.

52 & 53 Vict.
c. 50.

63 & 64 Vict.
c. 49.

2. In this Act the words "burgh" and "provost" have the meanings assigned to them in the Town Councils (Scotland) Act, 1900, and the word "county" does not include a county of a city.

Definitions.

3. This Act may be cited as the qualification of Women (County and Town Councils) (Scotland) Act, 1907, and shall apply to Scotland only.

Short title and
extent.

CHAPTER 49.

An Act to amend the Law with respect to Vaccination in Scotland by authorising a statutory declaration of conscientious objection. [28th August 1907.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) No parent or other person shall be liable to any penalty under section seventeen or section eighteen of the Vaccination (Scotland) Act, 1863, if within six months from the birth of the child he makes a statutory declaration that he conscientiously believes that vaccination would be prejudicial to the health of the child, and within seven days thereafter delivers the declaration to the registrar of the district in which such child was born and registered. A registrar to whom such a declaration is duly delivered shall not, so far as regards the child named therein, carry out the procedure as to intimation and transmission prescribed by the said sections in respect of the failure to transmit to him the certificate in those sections mentioned.

Statutory declaration as to conscientious objection and exemption from penalties.
26 & 27 Vict.
c. 108.

(2) A registrar shall keep such record of statutory declarations as may be prescribed by the Registrar-General, and shall furnish to any local authority executing the Public Health (Scotland) Act, 1897, within his district such periodical returns of statutory declarations as may be required of him and approved by the Local Government Board for Scotland, and for each declaration intimated in any such return he shall be paid by the local authority the sum of twopence, and the local

60 & 61 Vict.
c. 38.